

We Must Not Return to the Noose

Roy Cook

“My family deserted me and changed their names, but I kept right on with the job because I argued with myself that if I was doing wrong, then the government of the country was wrong. I held that I was the Minister of Justice at a hanging and that if I was a murderer, then he was also a murderer...”

“I used to say to condemned persons as I beckoned with my hand ‘come with me.’ Now at night when I lie down, I start up with a roar as victim after victim comes up before me. I can see them on the trap, waiting a second before they face their Maker. They taunt me and haunt me until I am nearly crazy with an unearthly fear. I am two hundred times a murderer, but I won’t kill another man.” —John Robert Radcliffe, 1912. Quoted by Frank W. Anderson in *A Concise History of Capital Punishment in Canada*, 1973.

It’s ironic that despite his best efforts, not even Radcliffe, Canada’s leading public executioner and a man who made his living by hanging criminals, could succeed in justifying the barbaric practice of capital punishment.

It’s an immoral, inhuman act. It’s murder committed by a self-righteous society.

Capital punishment was abolished by Parliament, according to democratic process, in 1976. But a small, opportunistic segment of society won’t allow it to fade into history.

Every time a policeman is killed on duty or a small child is molested and murdered, there is a groundswell of emotional cries to bring back the death penalty.

A recent spate of police murders—including five in Ontario—has renewed the debate over hanging.

Proponents of capital punishment nobly call for “justice.” In truth, their motive is less honorable. They want only vengeance.

One of the basic tenets of our civilized society is that individuals have a fundamental right to life. We are taught from childhood that murder is wrong.

Yet those who support capital punishment would deny criminals that right. They would argue that because one murder has occurred, “justice” dictates that another be committed; that one moral failure can be compounded by another.

After the IRA bombing of a Brighton hotel that killed four, British Prime Minister Margaret Thatcher tried to exploit the sorrow and outrage of Britons in calling for a return of the death penalty in that nation. She hoped emotion would overwhelm reason.

“People who go out prepared to take lives of other people forfeit their own right to live,” she said.

Mercifully, not everyone is as bloody-thirsty as the Iron Lady.

In Canada, pro-hanging factions draw clear distinctions between those murderers who deserve capital punishment and those who don’t—often, with ludicrous results.

Some advocates say the death penalty should be reserved for the killers of policemen and prison guards. But that wrongly suggests that a policeman’s life is more sacred than any other citizen’s.

Others want capital punishment only for psychopathic killers. But to hang the criminally insane is to punish them for crimes for which they are not responsible.

Still another faction wants the death penalty used only in particularly repugnant cases, or where the murderer is clearly guilty.

It sounds like a fine, upright idea. But besides denying the rehabilitative role of prison, that argument suggests people are being convicted of crimes when there is doubt as to their guilt. It's a frightening prospect, but in some cases, that's exactly what's happening.

In the past few months, Canadians have seen several instances where our justice system has erred—where men have been incarcerated for crimes they did not commit.

In Nova Scotia, Donald Marshall served 11 years of a life prison term for murder before being acquitted in 1982. Wilfred Truscott spent eight months in an Alberta jail for a crime he did not commit. And a Vancouver man was recently pardoned after serving eight years of a sentence for rape.

Death penalty supporters will argue these cases irrelevant—that the crimes for which these men were charged would not have been punishable by death.

Yet Marshall, Truscott and others are living proof that our justice system is fallible. Mistakes are made, and they are made often.

Just as society has condemned innocent men to months and perhaps years in prison, so too could it sentence them to death for crimes they did not commit.

Victims of our justice system can always be released and partially compensated for the time they spent in prison. They cannot be raised from the dead.

Do we really want the power to hang a man knowing that there is a possibility—however remote—that he is innocent? Is our lust for vengeance so strong that it overwhelms all reason and compassion?

There's no doubt society has reacted irrationally to many murders.

When Toronto policeman David Dunmore was killed by a man obsessed with the movie *First Blood*, the cry went out for censorship of television and movies—an appalling denial of democracy.

Too often, we hear the families of murder victims bemoaning that the killer will only serve 25 years of his life sentence and then be free to kill again. The only way to prevent other killings, they say, is to hang him.

Perhaps. But maybe all we need are tougher sentences and restrictions on parole. Would a man still kill if he knew he would spend the rest of his life in a cell? And wouldn't society be satisfied in knowing that if a criminal is sentenced to 15 years in prison, he would serve that term, rather than being out on mandatory supervision in 10?

Capital punishment has been called the ultimate deterrent. Yet in places where it is available, it has not stopped murderers.

California has a death penalty, but that didn't prevent James Huberty from murdering 21 people in a San Ysidro McDonald's restaurant. The thought of a Utah firing squad didn't deter Gary Gilmore.

No matter what the penalty, murders will always occur.

But many could be prevented, by tougher gun control. If he hadn't had access to an arsenal, James Huberty might not have embarked on his spontaneous shooting spree.

Instead of tougher gun control, society seems to be adopting a siege mentality. In the wake of the cop killings, Ottawa police have been instructed to draw their guns in stopping suspicious motorists.

“We’re hired to protect law-abiding citizens and it’s a very sad day for us to arrive at this point. It’s no longer safe for a police officer to respond [to a call] in a relaxed fashion,” says Ottawa Chief Arthur Rice.

The Sherbrooke police force knows that only too well.

Two of its detectives were tried and recently acquitted of charges in connection with the death of an innocent man last December. During a raid on a motel room, police fired through a closed door, killing the sleeping man. A defence lawyer at the trial said the men fired because they were “afraid for their lives.”

How many Ottawa policemen will be “afraid for their lives” when they stop a suspicious motorist?

Canada prides itself on being a “just” society. Never have we been so close to dissolving into barbarism.